

M/s JPS Steels (P) Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 12 September 2016 · Writ - C No. 35021 of 2013 · **Writ petition dismissed as infructuous.**

HEADNOTE

A writ challenging additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed as infructuous on the petitioner's statement. An earlier 2013 Division Bench had connected the matter with similar petitions and stayed the demand without prejudice; Para 4.20 was not construed.

FACTUAL SUMMARY

M/s JPS Steels (P) Ltd. challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005. On 2 July 2013 the writ was connected with W.P. No. 30582 of 2009 (M/s Vehina Steels & Alloys) and similar pending petitions; a counter was called and, following that earlier interim, additional-security demand was stayed without prejudice. On 12 September 2016 petitioner's counsel stated the writ had become infructuous.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

On the petitioner's statement that the writ had become infructuous, the Division Bench dismissed the petition challenging additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005, without deciding that demand. ¶ 2

PRINCIPLE TAGS

additional-security A writ challenging additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed as infructuous on the petitioner's statement. An earlier 2013 Division Bench had connected the matter with similar petitions and stayed the demand without prejudice; Para 4.20 was not construed. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ADDITIONAL-SECURITY DEMAND UNDER PARA 4.20

2013 interim restraint followed the stay in connected W.P. No. 30582 of 2009 and was without prejudice; the 2016 disposal did not construe Para 4.20. ¶ 1-2